



POLICE DEPARTMENT

July 29, 2024

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2023-28818
Lieutenant Ryan Murphy	:	
Tax Registry No. 933077	:	
Transit Borough Manhattan	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Kenneth Crouch, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
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To:
HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Lieutenant Ryan Murphy, on or about April 15, 2022, at approximately 2032 hours, while assigned to TD 01 LTP and on duty, in the vicinity of 59th Street/Columbus Circle subway station, en route to MCB, Transit District 1 stationhouse, New York County, abused his authority as a member of the New York City Police Department, in that he engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that he issued an unlawful summons to § 87(2)(b) for disorderly conduct without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 18, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Civilian Complaint Review Board presented a hearsay case, entering body-worn camera footage into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

This case arises from an anonymous complaint made to the Internal Affairs Bureau and forwarded to CCRB. The complaint concerned a disorderly conduct summons issued by Police Officer Randy Vasquez, to § 87(2)(b) ("Complainant"), on April 15, 2022 at 2032 hours. In support of its case, CCRB presented body-worn camera footage of the incident recorded by Respondent and Police Officer Vasquez. (CCRB Exs. 1-2, 4-5) In addition, CCRB presented Respondent's Activity Log Entries for the date in question. (CCRB Ex. 3) The video footage

depicts the interaction between Respondent and Complainant, which occurred on the northbound 1 train platform in the Columbus Circle subway station, from different angles. Respondent appeared on his own behalf and entered into evidence a YouTube video, created by Complainant, which included footage from this incident.

The facts underlying this incident are largely undisputed. Respondent, who has been assigned to the Transit Bureau in different assignments since 2008, testified that on April 15, 2022, he was conducting visibility patrols of the subway with Police Officers Vasquez and Wu. Respondent explained that the patrols consisted of “visual inspections” of each train car as they entered the station, as well as watching the platform and trains on the opposite side of the station. He recalled stopping a social worker and her client on the platform, because the social worker opened the emergency gate, allowing her client to enter without paying the fare. Respondent remembered that he first took notice of Complainant while he was explaining to the social worker and her client his decision not to issue a summons. Complainant was standing behind Respondent recording the conversation and the social worker asked him to stop. Complainant responded, “What if you get shot?” to which the social worker shrugged. Complainant replied, “You’re welcome, C’mon, please wake up.” Respondent finished his conversation, and then proceeded to the center of the platform where he and the two police officers took up observation positions. (Tr. 41-46; CCRB Ex.1; CCRB Ex. 5)

Respondent recalled that approximately “eight seconds” later, Complainant walked in front of where he and the other officers were standing. Complainant was standing close to the yellow safety line near the train tracks and appeared to be filming them. After approximately a minute and a half, during which time a couple of commuters walked in front of the officers, Complainant stated to an individual, “you can go ahead, bro, don’t be afraid.” The person can be

heard saying, "I don't want to get in your shot," and Complainant called out, "I got you, I got you." Complainant and Respondent then had the following exchange:

Complainant: "You heard what he said?"

Respondent: "What?"

Complainant: "He don't want to get shot."

Respondent: "No, he said he didn't want to get in your shot."

Complainant: "No, he said he don't want to get shot."

(CCRB Ex. 2 at 01:38-01:58; Respondent Ex. A at 33:10-33:32)

Shortly after this conversation, a train entered the station; Respondent and the other officers approached it and peered into the cars. Complainant followed them, still appearing to record. Respondent and the officers returned to their position on the platform and Complainant continued to record from a distance. (Tr. 54; CCRB Ex. 2 at 03:20-03:50; CCRB Ex. 5 at 03:40-04:05)

Complainant walked straight towards Respondent, stopping a couple of feet away when Respondent instructed him to not come any closer. Complainant responded, "You gonna shoot me? Why you looking at me like I'm the enemy?" When Respondent told Complainant not to come any closer, he again exclaimed "Oh, you gonna shoot me, right," then yelled, "Why are you taking me as the enemy?" Respondent informed Complainant that he could, "record...from over there," while pointing at the spot Complainant had stood before. Complainant moved partially back. Several subway riders were standing near the turnstiles, watching the interaction. (CCRB Ex. 2 03:50- 04:27; CCRB Ex. 5 at 04:14-04:44) Shortly thereafter, Complainant began shouting at Respondent:

Complainant: "Why the fuck you don't embrace me? Why the fuck you treat me like that?"

Respondent: "Stop screaming, Stop screaming."

Complainant: “Stop screaming? What’s wrong with you? Shut the fuck up.”
(CCRB Ex. 2 at 04:37-04:50)

After this exchange, Respondent testified that he made the decision to issue the disorderly conduct summons and motioned to Complainant to come towards him. Complainant began walking backwards quickly towards the turnstiles and Respondent grabbed his shirt to stop him. In the tussle, Respondent’s body-worn camera was dislodged. Complainant was arrested and taken to the Transit District for processing. Respondent testified that he consulted the NYPD’s Legal Bureau regarding the possibility of charging Complainant with both Disorderly Conduct (Penal Law § 240.20) and Obstructing Governmental Administration (Penal Law § 195.05). After discussing the incident, the Legal Bureau representative recommended issuing the Disorderly Conduct summons. They advised against charging Complainant with Obstructing Governmental Administration. Respondent instructed Police Officer Vasquez to write a summons to Complainant for Disorderly Conduct, recalling that the summons was to be issued under subsection 3, using abusive or obscene language in a public place. (Tr. 55-58, 61-62; CCRB Ex. 2; CCRB Ex. 5)

Respondent stands charged with abusing his authority by issuing a disorderly conduct summons without sufficient legal authority to do so. Respondent does not deny directing Police Officer Vasquez to write the summons. The issue before the Tribunal is whether CCRB has proven, by a preponderance of the evidence, that no basis existed to support its issuance. I find that they have not.

Paragraph 3(a) of Patrol Guide 208-01 provides that a police officer may make an arrest¹ without a warrant for a violation, when they possess “reasonable cause,” and the offense was

¹ Patrol Guide 209-01 authorizes the service of a summons in lieu of arrest for violations contained in the Penal Law, including section 240.20, disorderly conduct.

committed in their presence. An individual is guilty of Penal Law § 240.20 (3), Disorderly Conduct, when “with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof. . .” they use “abusive or obscene language, or make an obscene gesture,” in a public place.

The evidentiary record in this case is lacking. The summons in question was not entered into evidence. Counsel for CCRB explained that the summons was dismissed and sealed, and no unsealing order was sought. (Tr. 4) In addition, no evidence was presented regarding the reason for, or the timing of, the dismissal. Respondent testified, and I accept his statement, that the summons was written under subsection 3, using abusive or obscene language in a public place.

In spite of not having the summons narrative available, the parties entered into evidence the entire encounter as captured by body-worn and Complainant’s camera. In addition, Respondent testified about this matter in a detailed and straightforward manner, and I credit his account of the events.

Respondent contends, and the video footage corroborates, that Complainant intended to annoy and alarm members of the public who were on the platform that day. Complainant repeatedly, loudly, referenced himself, or others potentially being shot by Respondent and his colleagues. He got close to Respondent with a camera on a tripod in his hand. Complainant was increasingly loud and contentious. At least one person hesitated to walk in between Complainant and the officers, and when ushered through by Complainant, he rushed by quickly. Respondent described, and body camera footage depicted, other commuters watching near the turnstiles, but not approaching the part of the platform where Complainant was engaging Respondent.

Respondent remained calm and professional throughout the event. He followed the Department’s guidelines regarding private individuals recording police activity. Respondent

objected only when Complainant got within an arm's length of him. Respondent never told Complainant to stop recording, and did not take action until Complainant began to yell obscenities and ignored Respondent's warning to "stop screaming."

The specification charges that the summons, which was issued at Respondent's behest, was unlawful. Ideally, in order to make a determination regarding the lawfulness of the summons, the Tribunal would be able compare the allegations made against Complainant in the accusatory instrument with the video footage, Respondent's testimony, and any other evidence presented. However, even without the summons, the evidence showed an increasingly belligerent Complainant, causing a disruption in a public place, corroborating Respondent's assertions regarding the basis for the summons. In addition, Respondent took the additional step of consulting with a member of the NYPD's Legal Bureau, who recommended that he go forward with the summons, but not the arrest for Obstructing Governmental Administration. Respondent followed that advice and authorized the issuance of the summons to Complainant in good faith.

Ultimately, the burden lies with CCRB to establish the misconduct charged by a preponderance of the credible evidence. I find that they have failed to establish that the summons Respondent directed Police Officer Vasquez to issue Complainant was unlawful, and I therefore find Respondent Not Guilty.

APPROVED
AUG 23 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER

Respectfully submitted,

Anne E. Stone

Anne E. Stone
Assistant Deputy Commissioner Trials



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ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

July 26, 2024

Re: Lieutenant Ryan Murphy
Disciplinary Case No. 2023-28818

Commissioner Caban:

The above-referenced case was tried on June 18, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Lieutenant Ryan Murphy, was charged with the following:

1. Lieutenant Ryan Murphy, on or about April 15, 2022, at approximately 2032, while assigned to TD 01 L TP and on duty, in the vicinity of 59th Street/Columbus Circle subway station; En route to MCB; Transit District 1 stationhouse, New York County, abused his authority as a member of the New York City Police Department, in that he engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that he issued an unlawful summons to § 87(2)(b) for disorderly conduct without sufficient legal authority.

AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT; PG 200.02 MISSION,
VISION AND VALUES OF NYPD

CCRB has reviewed the July 16, 2024, draft decision of Assistant Deputy Commissioner - Trials Anne E. Stone (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to Fogel v. Board of Education, 48 A.D.2d 925 (2d Dep’t 1975).

The Court found Respondent Murphy not guilty of Specification One. It is respectfully requested that you reject ADCT Stone’s findings, find the Respondent guilty of the sole Specification, and accept CCRB’s recommended penalty of the forfeiture of Fifteen (15) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

Exhibits

CCRB’s Exhibits

1. LT Ryan Murphy’s Body-Worn Camera Footage, File 1 of 2
2. LT Ryan Murphy’s Body-Worn Camera Footage, File 2 of 2
3. LT Ryan Murphy’s Activity Log Entries Dated April 15, 2022
4. PO Vasquez’s Body-Worn Camera Footage, File 1 of 3
5. PO Vasquez’s Body-Worn Camera Footage, File 2 of 3

Respondent’s Exhibits

- A) Complainant § 87(2)(b) YouTube Video

STATEMENT OF FACTS

CCRB adopts the statements of facts articulated in DCT Stone’s Draft Decision.

ARGUMENT

RESPONDENT IS GUILTY OF SPECIFICATION ONE

We disagree with the Tribunal’s finding that the CCRB “failed to establish that the summons Respondent [Murphy] directed Police Officer Vasquez to issue Complainant was unlawful” (Decision, 7), emphasizing a lack of a complete evidentiary record while crediting Respondent’s determination that “[the] Complainant intended to annoy and alarm members of the public who were on the platform that day” (Decision, 6).

As an initial matter, notwithstanding the CCRB’s inability to furnish the summons at issue, the Tribunal was provided notice of, and accepted Respondent’s characterization of which Penal Law subsection he believed the Complainant had violated. Indeed, the Tribunal observed, “[r]espondent testified, and I accept his statement, that the summons was written under [§240.20] subsection 3, using abusive or obscene language in a public place” (Decision, 6) (emphasis added). As such, the Tribunal was bound to analyze the parties’ conduct under the aforementioned provision. Had it properly done so, the Tribunal would be compelled to issue one result: a guilty

finding.

Respondent Murphy's issuance of a summons under Penal Law §240.20(3) was unlawful because the Complainant's conduct never assumed a public dimension, nor did he possess the requisite mens rea to be guilty of the offense.

Penal Law § 240.20(3) reads in relevant part, "[a] person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof ... [i]n a public place, he uses abusive or obscene language, or makes an obscene gesture." People v. Baker goes further, holding that "a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem" 20 N.Y.3d 354, 359-60 (2013). To put a finer point, the Court of Appeals contemplated the precise circumstances at hand, in People v. Gonzalez: There, the defendant "shouted obscenities at police officers in a subway station in Manhattan, provoking looks of surprise and curiosity from some passengers and evasive movements from others. The officers followed defendant to another level of the station, where a police sergeant prevented him from leaving" People v. Gonzalez, 2015 NY Slip Op 05515, 1-2 (2015). Nevertheless, the Court of Appeals held there was no support for the lower court's determination that defendant's rant against the police officers constituted the crime of disorderly conduct, where the exchange never rose to one of a "potential or immediate public problem." Id. at 2. Here, CCRB Exhibits 1-2 provide clear and convincing evidence that the complainant, while loud, did not create a scene, a crowd, or otherwise disturb the operation of the subway at the Columbus Circle Subway Station. Far from it; the cited exhibits depict the officers freely inspecting an arriving train, and stoically observing the Complaint for much of the recorded interaction. Thus, Complainant's conduct could not constitute the sort of public disturbance contemplated by the statute.

Finally, Baker also counsels that, in analyzing whether the necessary mens rea is present in a disorderly conduct conviction, courts consider such factors as "the time and place of the episode under scrutiny; the nature and character of the conduct; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances." Id. at 357. The setting for the present incident is crucial, not in the least because a subway station already poses a chaotic setting which would require significant action to disrupt peace and order in its vicinity. cf. People v. Foster, 2022 NY Slip Op 22157, 5, (City Ct. Schenectady) ("This is easily distinguishable from People v. Gonzalez, where the incident took place in a subway station, where loud noises and people behaving unpredictably are to be reasonably expected"). In considering any of the enumerated factors, Complainant's conduct was at worst annoying, yet far below that of a public disturbance. The Tribunal's characterization of the Complainant as "increasingly loud and contentions" during the interaction is belied by its comparatively muted observation that "[a]t least one person hesitated to walk in between Complainant and the officers, and when ushered through by Complainant, he rushed by quickly" (Decision, 6). One commuter's tepid yet ultimately successfully traversing the scene does not constitute a public disturbance; as the Tribunal concedes elsewhere, a train is able to arrive and disembark without incident (Decision, 4). As such, Complainant's conduct fell far short of that which would sustain a summons for disorderly conduct; Lieutenant Murphy's summons for said conduct must similarly fail for insufficiency.

CONCLUSION

In sum, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on the charged Specification. Based on the presented arguments above,

Lieutenant Murphy is Guilty of Specification One (1), and CCRB recommends the penalty of the forfeiture of Fifteen (15) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Kenneth P. Crouch", written over a horizontal line.

Kenneth Crouch, Esq.
APU Prosecutor
NYC Civilian Complaint Review Board

cc: James Moschella, Esq.
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